



Notification Waiver Determination

Ampol – Freehold land acquisition in Chelsea Heights, Victoria

Acquisition	Ampol Petroleum Pty Ltd (Ampol Australia) applied for a notification waiver in respect of its proposed acquisition of a freehold interest in land at 241 Wells Road, Chelsea Heights, Victoria 3196 (the Target Site) via a contract for the sale of land, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 June 2026

Parties to the Acquisition	The acquirer, Ampol Australia, is a wholly owned subsidiary of Ampol Limited (Ampol). Ampol, which is listed on the ASX, is a vertically integrated fuel company with upstream fuel production and importing assets, wholesale supply and distribution facilities, and a network of retail fuel and convenience sites across Australia. Ampol operates retail sites under both the Ampol brand and the U-GO brand. Ampol branded sites are full-service sites with fuel and convenience offerings. Launched in 2023, the U-GO branded sites are low cost, unstaffed self-service sites selling only fuel and with no convenience offering. The target is a freehold interest in land at the Target Site. Ampol currently operates a retail fuel and convenience site under the Ampol brand located at the Target Site. Ampol sets the fuel pricing at the Target Site. The vendor is a private property investor not involved in the supply of any goods and services other than the current leasehold to Ampol.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: Ampol currently operates a retail fuel and convenience site at the Target Site, has been leasing the land for 33 years for that purpose, and intends to continue operating a retail fuel and convenience site at the target Site post-Acquisition.

	b. the Acquisition does not change the number of Ampol sites or competitor sites in the area around the Target Site. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act